

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SYDNEY GOLDBERG,

Plaintiffs

SUMMONS

INDEX NO.

-against-

CITY OF NEW YORK; Police Officer TRISTON TRUNK,
Shield No. 16858 and JOHN and JANE DOE 1 through 10,
individually and in their official capacities the
names John and Jane Doe being fictitious, as the
true names are presently unknown),
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer, or, if the complaint is
not served with this summons, to serve a notice of appearance on
the Plaintiff's Attorney within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered
to you within the State of New York); and in case of your failure
to appear or answer, judgment will be taken against you by default
for the relief demanded herein.

Plaintiff designates KINGS County as the place of trial. The basis
of venue is residence of Plaintiff.

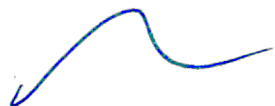
Plaintiff resides at: 383 91st Street, Brooklyn, N.Y., 11236

Defendants' address is: One Police Plaza, New York, N.Y. 10007

NOTICE: This action is to recover damages for injuries to
plaintiff caused by the defendant's negligence. The relief
sought is monetary damages.

Upon your failure to appear, judgment will be taken against
you by default for an amount to be determined, with interest and
the costs of this action.

Dated: February 22, 2019



ROBERT MARINELLI, ESQ
305 Broadway-Suite 1001
New York, N.Y. 10007
212-822-1247

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SYDNEY GOLDBERG,

Plaintiffs

COMPLAINT

INDEX NO.

-against-

CITY OF NEW YORK; Police Officer TRISTON TRUNK,
Shield No. 16858 and JOHN and JANE DOE 1 through 10,
individually and in their official capacities the
names John and Jane Doe being fictitious, as the
true names are presently unknown),
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PLEASE TAKE NOTICE that plaintiff, by his attorney, ROBERT J.
MARINELLI, alleges the following, upon information and belief:

Preliminary statement

1. This is an action for damages arising from the imprisonment and prosecution of plaintiff Sydney Goldberg ("plaintiff"). Plaintiff was arrested and subjected to various criminal charges on April 7, 2017, without probable cause and in violation of her rights under federal law.
2. On April 7, 2017, POLICE OFFICER TRISTON TRUNK ("TRUNK"), Shield No. 16585; and POLICE OFFICERS JOHN DOE 1 - 10 ("Does"), acting within the scope of their employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") falsely arrested, failed to intervene, and made false allegations to the Kings County District Attorney's Office with

respect to plaintiff.

4. Plaintiff seeks compensatory and punitive damages, attorneys' fees and costs with respect to the claims arising under federal law, and such other and further relief as the court deems just and proper.

JURISDICTION AND VENUE

5. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

6. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

7. Venue is proper in this court pursuant to 28 U.S.C. §§ 1391 (b) and (c).

8. The cause of action arose within Kings County, within the State of New York.

PARTIES

9. Plaintiff is a resident of Kings County

10. At all times hereinafter mentioned, plaintiff is a natural person residing in Brooklyn, N.Y.

11. At all times hereinafter mentioned, defendant TRUNK was a police officer, employee and agent of the CITY, acting within the scope of his employment and under color of state law. Defendant TRUNK is sued in his official and individual capacity.

12. At all times hereinafter mentioned, defendants DOES were police

officers, employees and agents of the CITY, acting within the scope of their employment and under color of state law, whose names and identities are not currently known to plaintiffs. Defendants DOES are sued in their official and individual capacities.

13. At all times hereinafter mentioned, defendant NYPD was an agency of the CITY.

14. At all times hereinafter mentioned, defendant CITY was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

STATEMENT OF FACTS

15. In a sworn complaint Trunk alleged that on April 7, 2017 at approximately 11:51 p.m. in the vicinity of 581 Midland Avenue, Brooklyn, N.Y. plaintiff had trespassed and burglarized that location.

16. Defendants never saw plaintiff within that location and plaintiff, despite defendants' claim to the contrary, was never identified by anyone as having been present in the residence.

17. Nevertheless, defendants illegally stopped and seized plaintiff.

18. Despite the fact that they had no probable cause to believe that she had committed any crimes or offenses, the officers, including defendant Trunk, placed plaintiff under arrest.

18. Plaintiff was handcuffed and placed in a police van. Plaintiff, was ultimately taken to the police precinct.

18. At the precinct the officers falsely informed employees of the Kings County District Attorney's Office that plaintiff had been observed committing a crime.

19. At no point did anyone observe plaintiff doing anything illegal.

20. Ultimately, plaintiff was taken to Brooklyn Central Booking.

21. After about twenty-four hours in custody plaintiff was released.

Ultimately all charges against plaintiff were dismissed.

22. Plaintiff spent \$5,000 to hire a criminal defense lawyer.

22. Plaintiff suffered damage as a result of defendants' actions.

Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM

False Arrest

23. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

23. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

24. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

SECOND CLAIM

Malicious Prosecution

25. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

26. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

27. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

28. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

THIRD CLAIM

Denial Of Constitutional Right To Fair Trial

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. The individual defendants created false evidence against Plaintiff.

31. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

32. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

33. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

Failure To Intervene

34. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

35. Those defendants who were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

36. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth and Fourteenth Amendments.

37. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM

Municipal Liability

37. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

38. This is not an isolated incident. The City of New York (the

"City"), through policies, practices and customs, directly caused the constitutional violations suffered by plaintiff.

39. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

40. The City, through its police department, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

41. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior

42. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct. These policies, practices, and customs were the moving force behind plaintiff's injuries.

Prayer for Relief

Wherefore, plaintiff demands judgment against defendants as follows:

- a) Compensatory damages;

- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
- d) Interest, costs and disbursements;
- e) Other and further relief as the court deems proper/

A jury trial is hereby demanded.



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New York, N.Y.
February 22, 2019